

25STCV15459 25STCV15459

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-21

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Case Number: 25STCV15459 Hearing Date: July 21, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 21,

2026 TRIAL

DATE: May 18, 2027

CASE: Dragana Stijepovic v. Davita Inc.

CASE

NO.: 25STCV15459

MOTION TO COMPEL DEPOSITION AND REQUEST
FOR SANCTIONS

MOVING PARTIES: Defendants

Davita Inc. and total Renal Care, Inc.

RESPONDING PARTY: Plaintiff Dragana Stijepovic

CASE HISTORY:

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05/28/2025: Complaint

filed.

TENTATIVE RULING:

Defendants Davita Inc. and total Renal Care, Inc.'s Motion to Compel Deposition is GRANTED. Plaintiff is ordered to appear for her deposition as agreed upon by the parties.

Defendants' request for sanctions is GRANTED in the reduced amount of \$2,940.50 against Plaintiff and counsel of record, jointly and severally, to be paid within 20 days of this order.

Moving Party to
give notice.

BACKGROUND

This is an employment action. Plaintiff alleges she suffered numerous acts of discrimination and that Defendants retaliated against Plaintiff because of her cancer diagnosis. Plaintiff also alleges that when she resisted Defendants' unlawful directives that jeopardized patient well-being and conflicted with her responsibilities as a social worker, she faced retaliation, and that in 2024, she was demoted and her pay was significantly reduced.

DISCUSSION:

As an initial matter, Plaintiff's opposition is untimely. The Court will exercise its discretion to consider it.

Defendants move to compel Plaintiff's deposition. Defendants provide evidence that Plaintiff's deposition was noticed six times, and Plaintiff canceled last minute each time. (Lu Decl., Exs. A-N.) At the last cancellation, Defendant re-noticed Plaintiff's deposition for April 23, 2026. (Lu Decl., Ex. R.)

"If, after service of a deposition notice, a party to the action ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the

party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (CCP § 2025.450, subd. (a).)

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motion must be accompanied by a good faith meet and confer declaration under section 2016.040 or, "when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (CCP § 2025.450, subd. (b)(2).)

In opposition, Plaintiff argues that

the motion is moot as Plaintiff has sat for her first session of her deposition, and her second session is scheduled for August 6, 2026. Plaintiff argues that all of the delays, except for one, in completing Plaintiff's deposition were necessary due to her cancer treatment.

However, three of the cancellations

were not due to Plaintiff's cancer treatment, but counsel's mistake in calendaring and twice for Plaintiff's counsel's trial conflicts. (Lu Decl., Exs. D, N, Q.) Further, the motion is not moot as Plaintiff has another deposition to complete in August. Moreover, Defendants argue in the Reply that after this motion was filed, Plaintiff rescheduled her first deposition session from April 23, 2026 to May 7, 2026, and she also failed to appear for her second deposition session on June 16, 2026, notifying Defendant only the day before. Thus, this motion is not moot and in fact, necessary. As Defendants served deposition notices and Plaintiff failed to proceed with her deposition, the motion is granted. Plaintiff is ordered to proceed with the deposition as agreed upon.

Sanctions

Defendants seek sanctions in the amount of \$5,060.5, which consists of 4 hours of attorney time at a rate of \$1,060 an hour, and \$820.50 for the non-appearance. (Lu Decl., Ex. S.)

If this motion is granted, the court

shall impose a monetary sanction in favor of the party who noticed the

deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2025.450(g)(1).)

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Plaintiff argues that the delays were due to her cancer, as noted above, three of the depositions were canceled due to Plaintiff's counsel's own conflicts. Further, as Defendant noted in the Reply, Plaintiff did not appear for her second deposition session. Nevertheless, because some of the cancelations were due to Plaintiff's cancer treatment, the Court will reduce the sanctions amount awarded. Thus, the Court imposes sanctions in the amount of \$2,940.50 (\$820.50 for the non-appearance invoice, and 2 hours at \$1,060 an hour), against Plaintiff and counsel of record, jointly and severally, to be paid within 20 days of this order.

CONCLUSION:

Accordingly, Defendants' Motion to Compel Deposition is GRANTED. Plaintiff is ordered to appear for her deposition as agreed upon by the parties.

Defendants' request for sanctions is GRANTED in the reduced amount of \$2,940.50 against Plaintiff and counsel of record, jointly and severally, to be paid within 20 days of this order.

Moving Party to
give notice.

IT IS SO ORDERED.

Dated: July 21, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the

hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.